

Tentative Rulings for Department 403

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Tentative Ruling

Re:

Le v. Singh et al.

Superior Court Case No. 25CECG00342

Hearing Date:

May 20, 2026 (Dept. 403)

Motion:

Motion to Compel Production of a Privilege Log to Request for Production of Documents, Set Two from Intervenor Accredited Specialty Insurance Company

Tentative Ruling:

To grant plaintiffs Sunny Le and Alyxza Abrams's motion to compel production of a privilege log from intervenor, Accredited Specialty Insurance Company, on its response to Request for Production of Documents, Set Two. Accredited Specialty Insurance Company is directed to serve a full and complete privilege log within 10 days of service of the order by the clerk.

To impose monetary sanctions in the amount of \$1,200, against intervenor Accredited Specialty Insurance Company and its counsel of record, joint and several, in favor of plaintiffs Sunny Le and Alyxza Abrams payable within 30 days of service of the order by the clerk to counsel for plaintiffs Sunny Le and Alyxza Abrams.

**If oral argument is timely requested, it will be entertained on
Thursday, May 28, 2026, at 3:30 p.m. in Department 403.**

Explanation:

On September 25, 2025, plaintiffs Sunny Le and Alyxza Abrams (together "Plaintiffs") served written discovery on intervenor, Accredited Specialty Insurance Company ("Intervenor"), including a Request for Production of Documents, Set Two. (Kracht Decl., Ex. A.) Plaintiffs now seek a privilege Intervenor served responses on October 28, 2025 by email. (Kracht Decl., Ex. B.) Intervenor's verifications were not served until October 30, 2025. (Kracht Decl., Ex. C.) Intervenor did not produce any documents and instead objected to all of the requests, based, in part on privileges. Plaintiffs now seek a privilege log for the privileges asserted.

After complying with Fresno Superior Court Local Rule 2.1.17, Plaintiffs timely filed this motion to compel production of a privilege log pursuant to Code of Civil Procedure section 2031.240, subdivision (c)(1).

Code of Civil Procedure section 2031.240 provides, in pertinent part, that "[i]f an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response **shall** provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (Code Civ. Proc., § 2031.240, subd. (c)(1), emphasis added.)

"The purpose of a privilege log is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125.) This feature of the Discovery Act prevents secret positions from being taken to justify the withholding of documents claimed to be secret." (*Roche v. Hyde* (2020) 51 Cal.App.5th 757, 814.)

"A privilege log must identify with particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit. (Code Civ. Proc., § 2031.240, subd. (b), (c); *Wellpoint Health Networks, Inc. v. Superior Court* (1997) 59 Cal.App.4th 110, 130.) The precise information required for an adequate privilege log will vary from case to case based on the privileges asserted and the underlying circumstances. In general, however, a privilege log typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted." (*Catalina Island Yacht Club v. Superior Court*, *supra*, 242 Cal.App.4th at p. 1130.)

Here, privileges were lodged, for which no privilege log was provided. Moreover, Intervener refused to provide a privilege log. Intervenor's opposition attempts to justify this refusal through three principal arguments: (1) that a privilege log is not required until the Court orders one; (2) that the assertion of objections on multiple grounds eliminates the privilege log requirement; and (3) that Plaintiffs' counsel already knew the information was privileged due to the tripartite relationship. Each argument lacks merit and contradicts established California law.

Litigants may not refuse to produce a privilege log merely because a court has not ordered them to do so. As the California Supreme Court has observed, civil discovery in California is intended to be self-executing. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402.) Code of Civil Procedure section 2031.240 could not be more clear: parties have an obligation to provide sufficient factual information to permit other parties to evaluate the merits of claims of privilege and work product. (Code Civ. Proc., § 2031.240, subd. (c)(1).) The statute contains no requirement that a court order issue before a party fulfils this obligation. The requirement can either be met by stating such facts in each individual discovery response themselves or in a privilege log. Here, the responses consist of general objections as a preface, with four to six additional individualized objections. Each and every response raises the attorney-client privilege and attorney work product protection. By virtue of making these responses, Intervenor obligated itself to provide the factual explanation required by Code of Civil Procedure section 2031.240.

Second, the requirements under Code of Civil Procedure section 2031.240, subdivision (c)(1) are not waived simply because there are other objections to an answer.

Third, Intervenor's argument that Plaintiffs' awareness of the "tripartite relationship" between Intervenor, an insurance company, the defendant who is its insured, and defense counsel is irrelevant. The purpose of privilege logs is to provide "a specific factual

description of documents ... to permit a judicial evaluation of the claim of privilege.” (*Hernandez v. Superior Court* (2003) 112 Cal.App.4th 285, 292, italics added.)

Accordingly, the motion is granted. Intervenor is ordered to provide a privilege log with respect to its response to Request for Production of Documents, Set Two.

Furthermore, Code of Civil Procedure section 2023.010, subdivision (d), provides that failing to respond to discovery is a misuse of the discovery process. A court may impose a monetary sanction for a misuse of the discovery process. (Code Civ. Proc., §§ 2023.030, subd. (a); 2031.310, subd. (h).) Here, Intervenor has failed to produce a privilege log despite the legal obligation, and multiple requests to do so. (See Kracht Decl., ¶¶ 12-15.) Furthermore, based on the arguments above, Intervenor's arguments are without substantial justification.

Accordingly, the court imposes mandatory monetary sanctions in the amount of \$1,200, to be paid by Intervenor, and its counsel of record, joint and severally, to counsel for Plaintiffs, Silva Injury Law, Inc.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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(Judge's initials) (Date)